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Case Number: 24PSCV01989 Hearing Date: August 6, 2026 Dept: 6

CASE

NAME: Brandon

Diaz v. Memitto Trucking, Inc, et al.

Motion

of Jeffrey Y. Choi and Mollyanne Wincek of Snyder Burnett Egerer, LLP to be

Relieved as Counsel for Defendant Luis Gerardo Santa Maria

TENTATIVE

RULING

The Court GRANTS the Motion of Jeffrey Y. Choi and Mollyanne Wincek of Snyder Burnett Egerer, LLP to be Relieved as Counsel for Defendant Luis Gerardo Santa Maria. The Court will sign the proposed order. Counsel must then serve the signed order on Defendant Luis Gerardo Santa Maria and file proof of service of same within five calendar days of this order.

Counsel is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is an auto accident case. On June 20, 2024, plaintiff Brandon Diaz (Plaintiff) filed this action against defendants Memitto Trucking, Inc., Luis Gerardo Camou Santa Maria[1] (collectively, Defendants) and Does 1 to 50, alleging causes of action for general negligence and motor vehicle.

On June 23, 2026, Jeffrey Y. Choi and Mollyanne Wincek of Snyder

Burnett Egerer, LLP moved to be relieved as counsel for Defendant Luis Gerardo Camou Santa Maria. The Motion is unopposed.

LEGAL

STANDARD

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted, provided that there is no prejudice to the client, and it does not disrupt the orderly process of justice. (See *Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915; *People v. Prince* (1968) 268 Cal.App.2d 398, 403-407.)

A motion to be relieved as counsel must be made on Judicial Council Form MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).) The requisite forms must be served "on the client and on all parties that have appeared in the case." (Cal. Rules of Court, rule 3.1362, subd. (d).)

DISCUSSION

Jeffrey Y. Choi and Mollyanne

Wincek of Snyder Burnet Egerer, LLP (collectively, Counsel) seek to be relieved as counsel for Defendant Luis Gerardo Santa Maria on the grounds that they have lost all contact with their client. (Choi/Wyncek Decl., ¶ 2.) A breakdown in the attorney-client relationship is grounds for allowing the attorney to withdraw. (*Estate of Falco* (1987) 188 Cal.App.3d 1004, 1014.) Grounds for permitting an attorney to withdraw from representation also include the client's conduct that, "renders it unreasonably difficult for the lawyer to carry out the representation effectively[.]" (Rules of Professional Conduct, rule 1.16, subd. (b)(4).)

Counsel has also submitted the notice of motion and motion, declaration, and proposed order on Judicial Council forms MC-051, MC-052, and MC-053. (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).) Proofs of service are attached to each document as well.

The Court finds
good cause exists. Accordingly, the Court GRANTS the Motion.

CONCLUSION

The Court GRANTS the Motion of Jeffrey Y. Choi and Mollyanne Wincek of Snyder Burnett Egerer, LLP to be Relieved as Counsel for Defendant Luis Gerardo Santa Maria. The Court will sign the proposed order. Counsel must then serve the signed order on Defendant Luis Gerardo Santa Maria and file proof of service of same within five calendar days of this order.

Counsel is ordered to give notice of the Court's ruling within five calendar days of this order.

[1] The Complaint spells Defendant Santamaria's last name as "Santamaria." (Compl., ¶ 1.) The Court assumes the Complaint's spelling was a typo and that the correct spelling is "Santa Maria."